

File No.: EXP202210886

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 13, 2022. The complaint is directed against an individual identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows: "(...) a series of cameras have been installed inside their home by a neighbor close to their property which, due to their location and orientation, are capable of capturing images of their home (...)"—page no. 1—.

Images of the camera locations are provided (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on October 17, 2022, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On November 30, 2022, a written response was received from the respondent regarding the facts subject to transfer, providing various photographic materials about the cameras installed inside their property, which are dome-type cameras that contain an informative plaque from the installing company inside, without further explanations in this regard.

FOURTH: On December 29, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On April 4, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPA-CAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: On May 5, 2023, a written response was received from the respondent stating "that they have proceeded to remove the cameras that could affect the neighbor."

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Evidence of this is the new photographs attached to this document, in which it can be verified once again that none of them capture images of the public road or the neighbor's property.

Even so, in order to avoid any issues regarding this matter, I have removed the camera from the backyard, which is the one that, due to its location and the theoretical extent (...) is the only camera that could raise doubts regarding the hypothetical capture of images.

SEVENTH: On April 27, 2023, collaboration was requested from the Security Forces and Corps to conduct the necessary inquiries at the scene, with no response having been given in this regard.

EIGHTH: On June 15, 2023, a was issued proposing the filing of the present procedure as no infringement in the matter at hand has been substantiated.

Consultation of the database of this agency shows the following for the purposes of administrative notification:

As the HOLDER to ACCEPT the notification made available in the DEHÚ: Identifier: ***IDENTIFIER.1 From the actions taken in this procedure and the documentation in the file, the following has been substantiated:

PROVEN FACTS

First. The facts arise from the complaint filed with this agency, conveying the following:

"(...) a series of cameras have been installed inside their home by a neighbor close to their property which, due to their location and orientation, are capable of capturing images of their home (...)"—page no. 1—.

Second: It is substantiated that the main responsible party is B.B.B., with NIF ***NIF.1.

Third. There is no substantiation of the processing of third-party data, nor that the cameras affected the private sphere of third parties.

Fourth: It is substantiated that the camera from the backyard has been removed from its current location.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the Law

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states:

"The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, the complaint dated 13/10/22 is examined, through which the presence of cameras that could, according to the complainant's statement, affect their "private sphere" depending on their orientation is reported.

Article 5.1 c) of the GDPR provides the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards the private space, avoiding intimidating

neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Moreover, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps.

It is worth noting that even in the case of a "dummy" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

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In accordance with the allegations of the parties, it is an indisputable fact that surveillance cameras were installed, and the respondent proceeded with their "removal," without having provided a screenshot of what was captured by them.

The principle of the presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact obliges, in any case, to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

It has not been possible to demonstrate, given that the cameras were removed, what was observed with them, so it cannot be confirmed at this procedural moment that there was a processing of third-party data without justified cause.

IV

In accordance with the allegations made, it has not been possible to demonstrate the commission of any administrative infringement, having proceeded with the removal of the cameras from their current location, which justifies proposing the filing of the current procedure.

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However, strict compliance with the regulations regarding data protection is reminded, with the installation of cameras that could affect the privacy of neighboring residents being prohibited. In such a way that a new complaint on this matter may be taken into account when assessing the sanction to be imposed or even ordering the opening of a procedure for non-compliance with the requirements of this agency, of which they are informed for the appropriate legal effects.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present procedure as no administrative infringement has been established in the matter at hand.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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